

 Internal Case Management System Worksheet - Case Closing					Top Allegation CRIME (NOT DOMESTIC) - SEX CRIME - CRIMINAL SEXUAL ACT		Group G10-GROUP 10 Date of This Report 09/18/2018	
Date Reported 04/22/2018	Date Assigned 04/22/2018	IAB Log No. 2018-15425	Case No. (G10) C-2018-176	Folder Type CORRUPTION	Preliminary Case Type CORRUPTION	Follow-Up No.	Worksheet Tracking No. 3182859	

Topic/Subject (Case Closing) CASE CLOSING: PARTIALLY SUBSTANTIATED	Activity Date 09/18/2018	Activity Time 23:44
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Referred to Group -	Conferred With	Next Review Date
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Closing Statement

Case #:
C-2018-0176

Log #s:
2018-15425
2018-15478
2018-43505

Subject Officer:
>PO., Steven, Grant, tax #962446, Bronx Court Section.
>Date of Appointment: 10/11/2016
>Probation: NO
>Current Duty Status: Modified Assignment

Date Case Received:
April 30, 2018

Date of Occurrence:
April 21, 2018

Administrative Statute of Limitations Expires:
October 21, 2019

Classification:
C-2

Investigator:
Sergeant Edwin Cardona, Tax #932416

Team Leader:
Lieutenant Samuel Irizarry, Tax #932812

Overall Disposition:
Partially Substantiated

Details:
Log #2018-15425
On Sunday April 22nd, 2018 at approximately 1200 hours, the IAB Command Center received an email from Det. Cheryl Blackwood, tax #927931, of the Special Victims Division Rape Hotline. The complainant, [REDACTED] stated that on Saturday, April 21, 2018, between the hours of 0530-0600 hours, the complainant was coming home from a club in Queens in which PO Steven Grant, tax #962446, assigned to Transit Bureau District 3, was driving with two other individuals in the vehicle, [REDACTED] and [REDACTED]. The complainant stated that she was highly intoxicated, so PO. Grant stated that he will walk her up to her apartment because he has to use the rest room as well. The location was [REDACTED]. When the complainant arrived at her apartment after being escorted by PO Grant, she noticed her glasses were missing. PO. Grant stated to the complainant that he will go back downstairs to get her glasses and asked for her keys and scan card, so he would be able to gain entrance back into the building. The complainant stated that PO. Grant did not come back until 30 minutes later, at which time he did not have her glasses. When the complainant asked PO. Grant about her glasses and why did it take him so long, he stated that her friend will bring it to her at another time and he further stated that he had to drop off her other friends. The complainant then stated that PO. Grant asked her about her night gown since she was still wearing her clothes, and then PO Grant led her to the bedroom and laid her on the bed. The complainant stated that PO Grant got into bed with her and laid behind her. The complainant told PO Grant to get out of her bed, at which time, the complainant

stated that PO. Grant put his hand down her pants and inserted his finger in and out of her vagina while laying behind her. The complainant stated that she kept on telling PO. Grant to stop and that she knows that PO. Grant is aware that she is with her boyfriend [REDACTED]. The complainant stated she began to cry after which PO. Grant stopped, got up, and left the scene only to come back 30 minutes later when the complainant was sleeping to pick up his jacket. The complainant [REDACTED] was home and opened the door for PO. Grant to get his jacket, and that is how the complainant became aware that PO. Grant came back to the scene. The complainant stated that PO. Grant was drinking in the night club and believed that PO. Grant was drunk. PO Grant drove his vehicle to the location and told the complainant he was involved in an accident after he left her apartment and provided a picture of his vehicle after the accident.

Log #2018-15478

On Sunday, April 22, 2018, at 2245 hours, Deputy Inspector McGrath called the Command Center to report that in regards to prior log# 2018-15425, PO Steven Grant (#962446), from Transit Division District 3, was modified for conduct prejudicial to the good order and efficiency of the Department by the reporter, under the authority of Deputy Commissioner Reznick, as of 2230 hours.

Log #2018-43505

On Monday, 11/05/2018, the IAB Command Center received Charges & Specifications from Sgt. Cardona who is assigned to IAB. The Charges are preferred by DI Gardiner against Officer Grant, tax #962446 assigned to the court section, under the authority of Chief Cooper. (Specification #1:Said Probationary Police Officer Steven Grant, while off-duty and assigned to Transit District. On or about April 21, 2018, in Bronx County, did fail and neglect to notify his supervisor and/or Internal Affairs Bureau regarding allegations of sexual misconduct levied against him.)

Identification and Interview of Complainant:

On Monday April 23, 2018, at approximately 1000 hours, while present at the Bronx District Attorney's Office, Group 21 and Bronx Special Victims Investigators interviewed [REDACTED]. On Friday April 20, 2018, the C/V was at home planning to hang out with her two (2) friends (witnesses [REDACTED] and [REDACTED], who are biological sisters). While at her home the C/V started drinking alcohol to "pre-game" for the night (indicating that she wanted to be buzzed prior to arriving at her intended destination). At approximately 2320 hours, the C/V left her building and walked to her friend's apartment building, which is located approximately six (6) blocks away from her own building. The C/V was unable to provide an address of the location. While at her friend's apartment, [REDACTED] called an UBER cab service and the three women were driven to [REDACTED] which is located in Queens, NY. Upon pulling up to the location, the C/V observed the S/O walking up the block towards them. The C/V questioned her friend [REDACTED] as to the reasoning behind the S/O's presence. [REDACTED] explained that she invited him without her knowledge. The C/V explained that the S/O and [REDACTED] are "really" good friends and have been for several years. [REDACTED] worked with the C/V and the S/O at the airport as well. It should be noted that the C/V advised the ADA that the S/O has always been obsessed with her and has relentlessly tried to pursue a romantic relationship with her. She went on to state that she has always made it clear that she had no intentions of becoming involved with him because she never found him to be attractive. While at the location, the C/V drank several servings of various alcoholic beverages. The S/O purchased a bottle of Patron. The C/V danced with several patrons including the S/O. The C/V stated that she and the S/O did not engage in any personal conversations while at the location. Any conversation that took place was in a group setting. The C/V admitted to being highly intoxicated and believes that the S/O was drunk. She could not recall the amount of drinks that was consumed by the S/O. At approximately 0400 hours, the S/O offered to escort the women home. The women accepted the S/O's offer to take them home. It should be noted that the only description given of the S/O's vehicle was the fact that it was old. The S/O operated his vehicle, [REDACTED] was in the front passenger seat and the C/V along with [REDACTED] were positioned in the back seat. Immediately upon entering the county of the Bronx, the C/V stated that she was hungry and requested to be driven to the White Castle located on Webster Avenue. The C/V's request was granted and the S/O drove to the location and food was ordered by using the drive-thru window. After purchasing the food, the aforementioned individuals arrived in front of the C/V's apartment building. It was at this point that the S/O requested to go upstairs with the C/V because he needed to use the bathroom. The C/V offered no objections to his request. It should be noted that the C/V advised that all of her five (5) children along with her babysitter was present in the apartment. The C/V stated that everyone was asleep and she doubts that anyone was aware that the two had entered the apartment. Immediately upon entering the location, the C/V started to eat her food when she realized that she left her glasses in the S/O's vehicle. The S/O informed her that he would go back downstairs and retrieve her property. In what appeared to be an extended period of time (approximately 30 minutes), the S/O returned without her glasses. The C/V inquired as to the location of her glasses and was advised that [REDACTED] would give them to her in the morning. The C/V stated that she thought to herself that what the S/O had just informed her made absolutely no sense at all. The S/O asked the C/V where her nightgown was located. She informed the S/O that she has no nightgown and that she would be sleeping in her clothes. The C/V described her outfit as being black leggings and a red shirt. Both individuals proceeded to the C/V's bedroom. The S/O then "spooned her" which was described as being a cuddle from behind and both parties landed on the bed. The S/O then stuck his hand in her pants and placed his fingers inside of her vagina. The C/V began to cry and say "stop---no---you know I have a boyfriend". The C/V advised that she is dating a man by the name of [REDACTED]. [REDACTED] knows the S/O from working with him at the airport as well. The S/O's response was "so why is your pussy wet". The C/V continued to cry when "like a robot he got up and left". The C/V stated she passed out after this due to her intoxication. At approximately 0900 hours on Saturday April 21, 2018, the C/V woke up. She was informed by [REDACTED] that the S/O was banging on the apartment door earlier in the morning. She opened the door and he requested to get his black trench coat that was accidentally left at the location. She allowed him to enter and get his property. The C/V stated that she was unaware that he had responded back to the location (video footage was reviewed and will be detailed in an additional worksheet. The video confirms that the S/O responded back to the location and retrieved his jacket). When asked by the Special Victims Detective what the C/V hoped would happen with this case, the C/V stated that all she wants is an apology. She went on to state that she doesn't want to see the S/O lose his job because she knows how hard it is to find employment these days. She also said that she reported the incident after her boyfriend pressured her to do so. It should be noted that the C/V stated that her boyfriend [REDACTED] has a main girlfriend and that she's just his side girl.

Identification and Interview of Witnesses:

In Person Interview with [REDACTED]:

On Tuesday, May 08, 2018, at approximately 1556 hours, while at the Bronx District Attorney's Office, Group 10 Investigators conducted an in person interview with [REDACTED]. [REDACTED] has known the complainant for approximately 5 years and they are best friends. [REDACTED] has also known the subject officer for the same length of time and they are good friends. The complainant and the subject officer are friends with no intimate relationship. [REDACTED], [REDACTED], and the complainant were in her house drinking Cognac Duce before they left for the [REDACTED] on Friday, April 20, 2018 at approximately 10pm-11pm. [REDACTED] and the complainant were aware of the subject officer's invitation to the outing by [REDACTED] and agreed to meet him at the [REDACTED]. The group had their own table with a bottle of Patron and two (2) Hookahs. [REDACTED] and the complainant drank a lot, but [REDACTED] does not drink a lot and the subject officer was normal and "chillin". The subject officer and the complainant had a normal night together which involved drinking and dancing. [REDACTED] and the complainant were dancing and [REDACTED] and the subject officer spent some time at the table. [REDACTED] remembers getting a ride home from the subject officer and eating some Halal meat. [REDACTED] does not remember the car ride home or anything else other than waking up at home. The next day, [REDACTED] calls her and the complainant told her that the subject officer finger popped her and told her about the incident. The complainant tells [REDACTED] that she doesn't remember what she said to the subject officer other than she loves [REDACTED]. [REDACTED] asked the complainant what she wanted to do and all the complainant wanted was an apology or a sit down with the subject officer, but ended up reporting the incident the following day. The complainant tells [REDACTED] that the subject officer denies that anything happened. [REDACTED] spoke with the subject officer on Saturday prior to her learning of the incident. The context of their conversation was regarding his car accident. [REDACTED] stated that she believes the complainant over the subject officer and they were all "shitfaced". [REDACTED] acknowledged that the incident may have been "egged on". They are all friends and there was always some flirtation and does not know why this happened. There were never any prior incidents such as this in the past. Unrelated to this case and during a previous outing, [REDACTED] describes the group driving in Brooklyn toward a boat ride. During the drive, the complainant sucked the subject officer's finger. [REDACTED] provides this as a specific example of what their flirtation entailed. [REDACTED] describes the subject officer as a gentleman.

In Person Interview with [REDACTED]:

On Friday, April 27, 2018, at approximately 0940 hours, while at the Bronx District Attorney's Office, Group 10 Investigators conducted an in person interview with [REDACTED], [REDACTED] her sister, [REDACTED] and PO Grant decided to go to a lounge on Steinway Street in Queens, NY. On Friday night into Saturday April 21, 2018, [REDACTED] and [REDACTED] took an Uber car from the Bronx and met with subject officer in front of the lounge in Queens. Subject officer arrived and met them on the line to go inside the lounge. Once inside subject officer ordered and paid for a bottle of Patron (liquor) for the group and everyone drank and danced the night away. She indicated subject officer and [REDACTED] were dancing together and flirting with one another. It has been known through the group that subject officer had feelings or liked [REDACTED] but he has never mentioned it to her. At the end of the night around 3 or 3:30 am, the group entered subject officer's vehicle and commenced their ride to the Bronx. Subject officer drove his vehicle, [REDACTED] sat in the passenger seat, while her sister and [REDACTED] rode in the back. [REDACTED] was sleeping in the back seat through the trip. They made a pit stop through the drive thru of White Castle located off the Cross Bronx Expressway and Webster Avenue. From there they went to [REDACTED]'s apartment complex and parked in front of building. Subject mentioned through the trip that he needed to use the bath room. Upon arrival at her complex he assisted complainant into her residence since [REDACTED] was intoxicated. He returned to the vehicle approximately 5 minutes later. When he returned to the vehicle his demeanor did not change and his clothes did was not disheveled. He gave no indication of him having a dispute with [REDACTED] or potentially having some form of sexual contact with [REDACTED]. Subject them dropped off [REDACTED] at her residence a few blocks away. As she was entering building, subject officer asked her if she had [REDACTED]'s pair of glasses so he can return them to her. [REDACTED] told him that she would meet with her the next day and return the glasses herself. She was unaware of him returning to [REDACTED]'s residence. She thought he was going back home to Brooklyn. Several hours later, subject officer texts [REDACTED] through social media pictures of an accident he had gotten into in Brooklyn but no additional details. [REDACTED] also sends her a text messages of what subject officer did to her (uploaded on separate worksheet) several hours later and that's how she found out what happened. [REDACTED] wants absolutely nothing to do with this investigation and stated today is the only time that she was willing to meet and make a statement to investigators.

In Person Interview with [REDACTED]:

On Monday, April 30, 2018, at approximately 1337 hours, while at the Bronx District Attorney's Office, Group 10 Investigators conducted an in person interview with [REDACTED]. [REDACTED] has been employed by the [REDACTED] for the last five (5) years and is assigned to the training department. When PO. Steven Grant left the [REDACTED] joined the [REDACTED] as a new hire shortly after his departure. [REDACTED] only met. PO. Steven Grant two times. The first time he met PO. Grant was at a Basketball game and the second time he met him was during a coworker outing. [REDACTED] has known the complainant for approximately three (3) years. [REDACTED]'s relationship with the complainant is a friends / coworkers type of relationship. The complainant has a crush on him and they have sex and mess around. [REDACTED] does not consider the complainant a girlfriend and is describe to be his "side chick". [REDACTED] and the complainant have been hanging out in this capacity since September of 2017. [REDACTED]'s primary girlfriend does not know about him bonding with the complainant. [REDACTED] has met the two of the fathers for the complainant's children, but never had any conversations with them. They had a "hi and bye" sort of interaction with them. The complainant is aware that [REDACTED] has a primary girlfriend and they hang out once or twice a week. They usually grab something to eat together when they hang out. The complainant has known PO. Steven Grant for five (5) years. The complainant has been employed by the [REDACTED] for six (6) years. The complainant and PO. Steven Grant have no relationship or "friends with benefits" type of socializing. [REDACTED] works at [REDACTED] and is the mutual friend of PO. Steven Grant and the complainant. PO. Steven Grant has a crush on the complainant, but the complainant made it clear that they are only friends. [REDACTED] stated PO. Steven Grant used that night as an opportunity to follow through. [REDACTED] worked on Friday and Saturday from 4am to 12pm and was asleep during the incident. The complainant sent him screen shots of her conversation with PO. Steven Grant. The complainant told [REDACTED] what had occurred. [REDACTED] was informed by the Complainant that all she wanted

was an apology and doesn't want him to lose his job. The complainant was embarrassed and upset when she told him about the incident. The complainant told [REDACTED] that she was drunk. PO. Steven Grant helped the complainant into her building since she wasn't able to take herself upstairs. The complainant was questioning [REDACTED] on how he reacted to the situation. [REDACTED] was upset that PO. Steven Grant did this her. [REDACTED] told the complainant that whether or not she was his girlfriend or not, he would of handled it the same way.

[REDACTED] stated that there was no new information since the initial contact with the complainant.

Based on what he heard from others, PO. Steven Grant is a nice guy and there was no prior incidents.

It is not strange for PO. Steven Grant to be around the complainant's apartment. PO. Steven Grant has been around the apartment several times before. [REDACTED] always invited PO. Steven Grant to the gatherings / outings. The complainant didn't even know that PO. Steven Grant was coming.

[REDACTED] and the complainant worked together the day before and the next time they heard from each other was when she texted him the day after the incident. [REDACTED] suggested to the complainant that she should confront the subject officer and see if he apologizes. The complainant told [REDACTED] that PO. Steven Grant denied the incident. [REDACTED] told the complainant to report the incident since it's a time sensitive matter. The complainant waited a day or two before she reported it. [REDACTED] has a lot of family that are law enforcement. [REDACTED]'s mother, retired PO. [REDACTED] has been retired for 20 or 30 years and was last assigned to the 26th Precinct. [REDACTED] is now employed as a Property Manager.

In Person Interview with [REDACTED]:

On Tuesday, May 08, 2018, at approximately 1533 hours, while at the Bronx District Attorney's Office, Group 10 Investigators conducted an in person interview with [REDACTED]. [REDACTED] has known the complainant for approximately 1 year and has been babysitting her five (5) children for the last couple of months. [REDACTED] watches the children at least five (5) days a week during various hours, but it is usually during the overnight (approximately 1am). [REDACTED] has also occasionally served as a babysitter on the weekends. [REDACTED] usually sleeps in the boy's room and ensures that all of the children are ready for school in the morning. [REDACTED] sleeps in the boy's room because the complainant does not want anyone sleeping in the living room. [REDACTED] recalls babysitting the children on Friday, April 20, 2018, which was the night before the incident. [REDACTED] arrived to the apartment and does not recall seeing the complainant inside the apartment when he arrived. The door to the apartment was left opened for him since he lives down the hall. [REDACTED] recalls seeing the children awake and the lights on in the apartment. [REDACTED] and the children went to sleep Friday evening. [REDACTED] does not remember hearing any commotion or unusual noises while he was asleep. [REDACTED] remembers waking up around 6am when it was daylight and to the noise of the children watching Saturday morning cartoons. [REDACTED] spent approximately seven (7) minutes in the apartment before he left and did not see the complainant the morning of the incident. [REDACTED]'s relationship with the complainant is business in nature and he does not socialize with her. [REDACTED] was not aware of the fact that the complainant had a boyfriend. [REDACTED] had no idea what had specifically happened to the complainant and he still didn't know even during the interview.

In Person Interview with [REDACTED]:

[REDACTED] is [REDACTED] years old and goes to [REDACTED]. The complainant was wearing the same clothes as the night before. [REDACTED] is usually the babysitter when her mom goes out with her friends and that night was no exception. No one had come over or was in the house. Steven knocked on the door late at night. Steven had a nice demeanor when he was waiting outside. [REDACTED] opened the door when she heard the knocks. Steven wanted his jacket. [REDACTED] went to retrieve his jacket and during that time, she didn't Steven come inside. The jacket was big, black, and Steven thanked me when I returned it. Steven is nice. One time, he bought them pizza when he drove them home from Brooklyn.

Phone Interview with [REDACTED], Security Officer:

On Tuesday, May 01, 2018, at approximately 0703 hours, Group 10 Investigators conducted a phone interview with Security Officer, [REDACTED]. [REDACTED] was working the overnight security at [REDACTED]. [REDACTED] confirmed that he was working between 4am to 6:15am. [REDACTED] does not recall opening a door for a male and female couple. [REDACTED] does not recall seeing a tall male black with a leather coat or an intoxicated female entering the building. [REDACTED] does not have any documentation in his log that notes him opening a door for a male and female. [REDACTED] does not notate people that live in his building in his log. [REDACTED] reiterated to the undersigned that he does not recall opening the door for a tall male black with a leather coat or an intoxicated female.

In Person Interview with [REDACTED]:

On Thursday, November 2, 2017 at approximately 1641 hours, Group 12 Investigators conducted an in person interview with [REDACTED]. [REDACTED] stated on the incident date of April 21, 2018, at approximately 0630 hours, he and his wife were involve d in a vehicle accident at the intersection of [REDACTED]. [REDACTED] stated he had the right of way and proceeded through a green light when he was struck by a charcoal colored vehicle on the right side passenger front and rear doors. [REDACTED] stated at the scene he was approached by the driver of the other vehicle a male black approximately twenty years old, who ask them if they were ok. [REDACTED] stated that an unidentified female bystander at the scene assisted his wife in calling the police on her cell phone. [REDACTED] stated that two male black officer's in uniform arrived on scene and assisted with the accident, however he did not recall if the subject officer identified himself to the responding officer's. [REDACTED] stated at no time during his interaction with the subject officer did he appear to be intoxicated or smell like alcohol. In addition during the accident investigation the subject officer remained on scene the entire time. [REDACTED] stated that while in the process of awaiting on a tow truck he informed the responding officer's that he wanted to cancel the tow truck and as soon as EMS arrived he and his wife both refused medical attention. [REDACTED] stated that he then proceeded to drive his vehicle home. In addition [REDACTED] stated that the subject officer did not have his car towed from the location and drove his vehicle from the scene. [REDACTED] further stated that he had a camera installed on his rear view mirror that may have capture the vehicle accident and to please contact Progressive Insurance Agent [REDACTED] at [REDACTED] to retrieve the possible video footage.

In Person Interview with [REDACTED]:

On Tuesday, April 24, 2018 at approximately 1030 hours, Group 10 Investigators conducted an in person interview with [REDACTED]

██████████ stated on the incident date of April 21, 2018, at approximately 0630 hours, she and her husband were involved in a vehicle accident at the intersection of ██████████. ██████████ stated her husband had the right of way and proceeded through a green light when they were struck by a vehicle. ██████████ stated she was approached by the driver of the other vehicle, who asked them if they were injured. ██████████ stated she doesn't think the subject officer dialed 911, but an unidentified bystander did call the police on her cell phone. ██████████ stated that two male black officers in uniform arrived on scene and assisted with the accident, however, the subject officer did not identify himself verbally or by shield and ID to those officers. ██████████ stated at no time during her interaction with the subject officer did he appear to be intoxicated or smell like alcohol. In addition during the accident investigation the subject officer remained on scene the entire time.

Phone Interview with EMT. ██████████

On Monday, April 23, 2018, at 0540 hours, Group 12 Investigators conducted a phone interview with Kingsbrook Medical EMT, ██████████. ██████████ stated that when he got to the scene he only spoke with the Asian couple and had no interaction with the other driver (subject officer). The male Asian driver had no injuries or complainants and the female Asian passenger complained of dizziness. Although she complained of dizziness, she refused medical attention at the scene and stated that she would go to the hospital on her own if needed. He also stated that the male black driver had no visible injuries but had substantial damages to his vehicle. However, he had no interaction with him as his partner, EMT ██████████ spoke to him separately.

Phone Interview with EMT. ██████████

On Tuesday, April 24, 2018, at approximately 1707 hours, Group 10 Investigators conducted a phone interview with Kingsbrook Medical EMT, ██████████. EMT ██████████ responded to a motor vehicle accident with injuries at the intersection of ██████████ on Saturday, April 21, 2018. EMT ██████████ and his partner approached both parties and asked if medical attention was required. The first car approached by the team was occupied by a single male. The male said he was ok and refused medical attention at the scene. The second car they approached was occupied by a husband and wife. The husband (driver) said that he was ok and the husband told the EMT that his wife might need medical attention. The husband and wife spoke very little English, so with the help of their daughter, the EMTs were told that the husband and wife both refused medical attention at the scene and signed an RMA form. The daughter told the EMT's that the wife had her seatbelt on and was only in shock and nervous from the accident. EMT ██████████ did not smell any alcohol on the male motorist, nor did he look intoxicated, and did not exhibit slurred speech when they were talking to him. EMT ██████████ did not see any bottles of alcohol in or around his vehicle. The male did not identify himself to EMT ██████████ as a member of the service.

The male motorist remained on scene the entire time and he did not see the male motorist identify himself to the responding officers as a police officer. As far as EMT ██████████ is concerned, there was nothing out of the ordinary with the scene and it appeared to be just a regular civilian vehicle accident. EMT ██████████ described the scene as being basic and neither of the parties' demeanors were aggressive.

Canvass:

A review of video cameras from ██████████ (Bronx), the intersection of ██████████ (Brooklyn Argus Camera), and ██████████'s vehicle dash camera (Brooklyn) revealed that on Saturday, April 21, 2018, PO. Grant did escort and assist the complainant, ██████████ inside of her residence due to her apparent intoxication. PO. Grant is seen making a total of three (3) trips to ██████████'s residence, one of which was to retrieve his jacket, and another trip to return ██████████'s apartment keys. The remaining cameras, which were in the vicinity of ██████████ in Brooklyn, captured a motor vehicle accident between PO. Grant and ██████████. PO. Grant does not appear to be exhibiting signs of intoxication, nor does he appear to be displaying a shield, Identification card, or firearm during the vehicle accident. There was no misconduct captured or observed on the video.

Identification of Subject Officer:

On Sunday April 22nd, 2018 at approximately 1200 hours, the IAB Command Center received an email from Det. Cheryl Blackwood, tax #927931, of the Special Victims Division Rape Hotline. The complainant, ██████████ stated that on Saturday, April 21, 2018, between the hours of 0530-0600 hours, the complainant was coming home from a club in Queens in which PO Steven Grant, tax #962446, did put his hand down her pants and inserted his finger in and out of her vagina while laying behind her. The complainant stated that PO. Grant was drinking in the night club and believed that PO. Grant was drunk. As such, PO. Grant was added to this case as a subject officer.

Review of Department Records:

>A criminal background check on ██████████ revealed ██████████

>An ICMS / IAPRO background check revealed no prior logs filed by ██████████

>A review of Transit District 2's ATU Roster revealed that PO. Steven Grant was assigned to the first platoon with a tour of duty of ██████████ hours.

>A review of PO. Grant's modification UF-49 revealed that On Sunday April 22, 2018, at approximately 2230 hours, Police Officer Steven Grant, tax #962446, assigned to Transit Bureau District #02's Anti-Terrorism unit was placed on modified assignment by Deputy Inspector Thomas McGrath under the authority of Deputy Commissioner Reznick for the Good Order and Efficiency of the Department in the furtherance of log number #18-15425.

>A review of PETS Invoice #1001079385 revealed that PO. Grant's Glock Model 17, serial # ██████████ and his Smith and Wesson Model M&P, serial # ██████████ was invoiced due to his modification.

>A review of PETS Invoice #60000018749 and 60000018748 revealed that ██████████'s clothing and bedding were removed

by Crime Scene and taken to the Police Lab for analysis.

>A review of PETS Invoice #60000018750 revealed that a SOECK sample was taken from [REDACTED] and removed to the Police Lab for analysis.

>A review of Laboratory Report #CRT-0518-1088 revealed that male sperm cells were recovered from the cervical swab. The vulvar swab and vaginal swab did not contain enough DNA for comparison.

>A review of PO. Grant's Removal and Restoration of Firearms Report, under control number #18-170, revealed that PO. Steven Grant, tax #962446, was modified by Deputy Inspector Thomas McGrath, of IAB Zone 03, at 2230 hours on April 22, 2018, under the direction of Deputy Commissioner Reznick for the conduct prejudicial to the good order, efficiency, or discipline of the Department.

>A review of the Chain of Custody report revealed that PO. Grant's firearms were transferred to the custody of the 26th Precinct from the Internal Affairs Bureau.

>A review of text messages between the complainant and subject officer revealed that [REDACTED] accused PO. Grant of putting his fingers in her vagina and PO. Grant replying with a denial to [REDACTED]'s allegation.

>A review of text messages between the complainant and her boyfriend, [REDACTED], revealed that [REDACTED] apprised [REDACTED] of the incident and the complainant was told to report the incident to the authorities.

>A review of text messages between the complainant and [REDACTED] revealed that the complainant discussed the incident amongst themselves. PO. Grant did not answer [REDACTED]'s phone call as per the text messages.

>A review of [REDACTED]'s Consent to Search Form revealed that the New York City Police Department was authorized to complete a search of her residence.

>A Social Media inquiry revealed that [REDACTED] has not posted any information regarding the incident from her Facebook account, "[REDACTED]".

>A review of the 75th Precinct first (1) platoon roll call revealed that PO. Costigan and PO. McClarnon were partners during their tour of duty on Saturday, April 21, 2018. The aforementioned officers responded to the 10-53 [REDACTED], which involved PO. Grant.

>A review of City time records revealed that PO. Thomas Costigan's tour of duty is listed as [REDACTED] hours.

>A review of ICAD #D18042105104 revealed that on 04/21/18, at approximately 06:37:32 hours, a 10-53 came over at the intersection of [REDACTED]. The disposition was 93Q, 93C X2, 97R X2, and 10-99T4.

>A review of PAR #MV-2018-075-1780 revealed that there was a [REDACTED] Avenue, which involved PO. Grant and [REDACTED].

>A review of a Tapes and Records requests UF-49 revealed that Group 12 Investigators requested a copy of 911 audio associated with PO. Grant's 10-53, which is recorded under ICAD #D18042105104.

>A review of PO. Costigan's Activity Log revealed that on April 21, 2018, at approximately 0651 hours, PO. Costigan notes receiving a 10-53 at [REDACTED]. The job was marked at 0740 hours as 93Q, 99T4X2, 97RMA.

>A review of PO. McClarnon's Activity Log revealed that on April 21, 2018, at approximately 0651 hours, PO. McClarnon notes receiving a 10-53 at [REDACTED].

>A body camera inquiry revealed that PO. Costigan and PO. McClarnon, the responding officers from the 75th Precinct, do not have body cameras assigned.

>A review of the DAS Lite AVL revealed that RMP [REDACTED] responds to the 10-53 and remains on scene for approximately 26 minutes.

>A review of DAS Lite LPR records revealed that the Subject Officer's vehicle was seen travelling Queens Bound on the Date of 4/21/2018 and Time of 05:59:56.

>A review of the Photo Arrays for PO. Grant revealed that [REDACTED] positively identified PO. Grant, who was in position #2.

Computer and Related Background Checks:

>PO. Steven L. Grant, tax #962446, Bronx Court Section:
PERSONNEL PROFILE REPORT

PO. Steven Grant was appointed to the New York City Police Department on October 11, 2016, and was assigned to Transit Bureau ATU on March 19, 2018. His duty status is MODIFIED ASSIGNED and he is not listed as chronic sick. PO. Steven Grant

has no force or disciplinary monitoring. His last three (3) evaluations were (3 - 16 Month) in 2018, (3 - 60 DAY FTP) in 2017, and (3 -10 Month) in 2017.

CENTRAL PERSONNEL INDEX

PO. Steven Grant's CPI history documents no events.

IAPRO

PO. Steven Grant has no logs in IAPRO.

ICMS

PO. Steven Grant has no prior logs in ICMS.

Conferrals Conducted:

>A conferral with PO. O'Brien, of The Firearms and Tactics Section, revealed that PO. Grant only has a Glock 17 9MM, serial # [REDACTED] and a Smith and Wesson Model MP Shield 9MM, serial # [REDACTED] registered to his name with the Department.

>A conferral with Sgt. Sullivan, of Bronx Special Victims, revealed that the complainant should be interviewed by a qualified FETI interviewer.

>A conferral with ADA. Kathleen Baer, of the Bronx District Attorney's Office, revealed that her office has closed her investigation, has consented to us to proceed administratively, and has asked us to inform her of the outcome.

>A conferral with Sgt. Perez, of the Crime Scene Unit, revealed that upon the completion of the Consent to Search Form, they will send two detectives to process [REDACTED]'s apartment.

>A conferral with Mr. Michael Fuchs, Director of 911 Services for Kingsbrook Medical Center, revealed that EMT [REDACTED] and EMT [REDACTED] responded to the 10-53 at [REDACTED].

>A conferral with [REDACTED] of the [REDACTED], revealed that [REDACTED] was uncooperative, evasive, and refused to comment further regarding the several video requests made by Group 10 Investigators. [REDACTED] was visited by Group 10 investigators on three (3) occasions within the seven (7) day period and a request for video was made during every visit. [REDACTED] hung up on Group 10 Investigators when they attempted to follow up with video request over the phone. [REDACTED] did not allow IAB Investigators to have access to the DVR systems by using an excuse during every visit (Need the password or I need the owner's permission). [REDACTED] even refused to provide the owner's contact information to the IAB Investigators.

>A conferral with [REDACTED] of Progressive Auto Insurance, revealed that a video from the other motorist's vehicle captured the accident at the intersection of [REDACTED].

>A conferral with [REDACTED], Program Director of [REDACTED] revealed that the video at the location captured the subject officer help the complainant to her residence.

>A conferral with Sgt. Sarosy, the Assistant ICO of the 75th Precinct, assisted IAB Group 10 Investigators obtain the Activity Logs of PO. Costigan and PO. McClarnon, who responded to the 10-53 at [REDACTED] on Saturday, April 21, 2018, during the first platoon.

>A conferral with PCT. Inmanperry, of the Tapes and Records Unit, provided Group 10 Investigators with the 911 Audio of the 10-53 at [REDACTED].

>A conferral with IAB Intel revealed that the agent at TD-03 is unfamiliar with PO. Grant. The IAB agent at TB ATU stated that rumor in the command was that the complainant was PO. Grant's friend and that she even has kids. Agent stated that PO. Grant doesn't look like the type of person that would sexually assault someone.

>A conferral with OCME revealed that the SOECK was received and its testing was pending.

>A conferral with Crimin Ferrante, of NYPD FID, revealed that the vaginal swab and the vulvo swab did not have enough DNA for comparison. The male DNA sample recovered was contributed to sperm cells that were recovered from the cervical swab that was recovered from the cervix.

>A conferral with 75th Precinct Roll Call allowed Group 10 Investigators to schedule the PG Hearings of PO. Costigan and PO. McClarnon.

>A conferral with Transit District 3 Roll Call allowed Group 10 Investigators to schedule the PG Hearing of PO. Kingston.

>A conferral with Bronx Court Section Roll Call allowed Group 10 Investigators to schedule the PG Hearing of PO. Grant.

>A conferral with Department Advocate Brock revealed that PO. Steven Grant will receive Charges and Specifications under IAB Log #18-43505.

Proactive Measures:

>Group 10 Investigators transported [REDACTED] to St. Barnabas Hospital in order to process a SOECK pertaining to the allegations.

>Group 10 Investigators transported PO. Grant's Shield and ID card to the Shield and ID unit at 1 Police Plaza.

>Group 10 Investigators served [REDACTED] a Criminal Court Subpoena at his residence on behalf of the Bronx District Attorney's Office.

>Group 10 Investigators served [REDACTED] a Criminal Court Subpoena at her residence on behalf of the Bronx District Attorney's Office.

>PRISONER DEBRIEFINGS

N/A

Other Information of Investigative Value:

N/A

Patrol Guide 206-13 Hearings:

>Police Officer Casey McClarnon, tax #961930, Witness

-PO. Casey McClarnon was appointed to the New York City Police Department on July 13, 2016 and has since been assigned to the 75th Precinct as a midnight patrol officer.

-On April 21, 2018, PO. McClarnon was assigned a midnight tour of duty of [REDACTED]. PO. McClarnon was assigned to the 75 Precinct Response Auto David with PO. Thomas Costigan in RMP # [REDACTED] and RMP # [REDACTED] during the latter half of the tour.

-On April 21, 2018, PO. McClarnon and PO. Costigan responded to a 10-53 at [REDACTED] where one vehicle "T-Boned" another at the location. PO. McClarnon does not recall the type of vehicles that were involved in the accident.

-The 75th Precinct Patrol Supervisor was not called to respond to the location because he was not needed. PO. McClarnon would only call a Patrol Supervisor to respond to the location if the accident involved an arrest situation or any other type of unusual occurrence.

-Although the motorists involved in the accident did not request a DARP Tow to the location, PO. McClarnon requested one because he believed that the vehicle was inoperable. Due to a language barrier, PO. McClarnon spoke with the motorist's daughter on the phone and after following up with the motorist, the vehicle was deemed drivable and DARP Tow was cancelled.

-PO. McClarnon only spoke to one of the motorist who was describe as a middle aged male Asian, who was accompanied by a female Asian, who were an older couple. PO. Costigan spoke with the other motorist.

-There was nothing out of the ordinary with the 10-53, nor was there any significant events that occurred during the job. PO. McClarnon could not recall if any of the motorists were intoxicated. PO. McClarnon did not notice any of the motorists exhibiting signs of intoxication such as alcohol on breath, blood shot eyes, swaying side to side, or slurred speech. PO. McClarnon did not observe any alcohol ic beverages inside of the vehicles or on the motorist's person.

-None of the motorists identified themselves to PO. McClarnon as a UMOS, nor did they display a shield, ID card, or show any Police Paraphernalia.

-PO. McClarnon was not informed by EMS that any of the motorist identified themselves as a UMOS, nor did either motorist state to him that they were approached by each other and identified themselves as a cop to each other.

-There were no other RMPS present at the scene of the accident to the best of PO. McClarnon's recollection.

-Hypothetically, if there was an intoxicated UMOS at the scene of the accident, PO. McClarnon would have notified the Internal Affairs Bureau.

>PO. Thomas Costigan, tax #960396, Witness

-PO. Thomas Costigan was appointed to the New York City Police Department on January 6, 2016. PO. Costigan has been assigned to the 75th Precinct as a midnight patrol officer since January of 2016.

-On April 21, 2018, PO. Costigan was assigned a midnight tour of duty of [REDACTED]. PO. Costigan was assigned to the 75 Precinct Response Auto Boy with PO. Casey McClarnon in RMP # [REDACTED] and RMP # [REDACTED] during the latter half of the tour.

-On April 21, 2018, at approximately 0651 hours, PO. McClarnon and PO. Costigan responded to a 10-53 at [REDACTED] where two vehicles had crashed into each other. The vehicles involved in the 10-53 was a 2012 Nissan Sedan and a 2004 Volkswagen Sedan. PO. McClarnon and PO. Costigan obtained statements from both of the motorists, which was documented on the PAR.

-A DARP Tow was requested by PO. McClarnon for [REDACTED]'s vehicle, but the DARP Tow was canceled when the vehicle was later deemed to be drivable by the motorist, after a conferral with the motorist's daughter via cellphone.

-The 75th Precinct Patrol Supervisor was advised of the DARP Tow, but was not called to respond to the location because he was not needed. PO. Costigan would only call a Patrol Supervisor to respond to the location if the accident involved an arrest situation, a pedestrian struck, or any other type of situation requiring a notification.

-The 10-53 at the location was considered routine by PO. Costigan noting nothing out of the ordinary. The 10-53 was described as property damage only with no injuries.

-To the best of PO. Costigan's knowledge, one motorist was describe as a male Black and the other motorist was an older male and female Asian couple. The motorist that PO. Costigan spoke with was Mr. Grant. Mr. Grant's demeanor was described by PO. Costigan as being calm and normal. The only statements made by Mr. Grant were the circumstances of the accident, which was added to the PAR.

-There was nothing out of the ordinary with the 10-53, nor was there any significant events that occurred during the job. PO. Costigan stated that none of the motorists were intoxicated at the scene. To the best of his recollection, PO. Costigan did not notice any of the motorists exhibiting signs of intoxication such as alcohol on breath, blood shot eyes, swaying side to side, or slurred speech. PO. Costigan did not recall observing any alcoholic beverages inside of the vehicles or on the motorist's person.

-To the best of PO. Costigan's recollection, none of the motorists identified themselves to him as a UMOS, nor did they display a shield, ID card, or show any Police Paraphernalia.

-There were no other RMPS present at the scene of the accident to the best of PO. Costigan's recollection. PO. Costigan recalls requesting an additional RMP for traffic control, but does not recall if it arrived.

-Hypothetically, if there was an intoxicated UMOS at the scene of the accident, PO. Costigan would have notified the Duty Captain, Supervisor and the Internal Affairs Bureau.

>PO. Marvel Kingston, tax #964094, Witness

-PO. Marvel Kingston was appointed to the New York City Police Department on July 5, 2017. PO. Kingston has been assigned to Transit District 3 as a third platoon patrol officer for the last four (4) months.

-PO. Kingston was working a [REDACTED] tour of duty on Friday, April 20, 2018 and Saturday, April 21, 2018.

-On April 20, 2018, PO. Kingston did not go to the [REDACTED] with PO. Grant, [REDACTED] or [REDACTED]. PO. Kingston was at home with his girlfriend and son. PO. Kingston has never been to the [REDACTED]

-PO. Kingston and PO. Grant know each other from their prior employment together at the [REDACTED] and they later ended up working at the same command at Transit District 3. PO. Grant and PO. Kingston do not hang out with each other at a social setting and maintain their relationship as professional. The last time that PO. Kingston had contact with PO. Grant was about a week ago. Since PO. Grant left Transit District 3 in February of 2018, he has not spoken to PO. Grant like he used to and his communication with him has since slowly dissipated. PO. Grant and PO. Kingston speak on average two (2) to three (3) times a month via phone. At no time during their telephone calls did PO. Grant tell PO. Kingston about the incident. The only thing mentioned to him during a phone conversation with PO. Grant on or before April 21, 2018, was that PO. Grant was involved in a vehicle accident. During the phone call, PO. Grant did not tell PO. Kingston any further details pertaining to the accident or open up any forum of discussion. PO. Grant never told PO. Kingston that he was intoxicated during the time of the accident, nor did he sound like he was intoxicated on the phone. To the best of PO. Kingston's recollection, he does not remember discussing damages to PO. Grant's vehicle.

-PO. Kingston and [REDACTED] know each other from their employment together at the [REDACTED] PO. Kingston only dealt with [REDACTED] during his last three (3) months of employment together. The last time that PO. Kingston had contact with [REDACTED] was a few days prior to his departure from [REDACTED] PO. Kingston and [REDACTED] are friends with each other on social media, particularly on Instagram since he worked at T.S.A. Although PO. Kingston and [REDACTED] are friends on social media, they don't text, call, or use social media to contact each other.

-PO. Kingston and [REDACTED] know each other for approximately two (2) years. Their acquaintance stems from their employment together at the [REDACTED] The last time that PO. Kingston had seen [REDACTED] was approximately one (1) week ago, when he was on duty and on his post as she was traveling through. The meeting was a mere coincidence and the interaction only lasted for about five (5) to ten (10) minutes and no mention of the incident was made by [REDACTED]

-PO. Kingston does not know [REDACTED] nor has he ever seen her before.

-PO. Kingston describes the relationship between PO. Grant and [REDACTED] as being a friendly relationship. PO. Kingston has never observed PO. Grant or [REDACTED] ever get physical with each other while at the [REDACTED] PO. Kingston does not know what the current relationship status is between PO. Grant and [REDACTED]

-PO. Kingston has never socialized with PO. Grant, [REDACTED], [REDACTED], or [REDACTED] besides work. PO. Kingston does not hang out with any of the aforementioned people off duty or during their off hours. When he would view alerts from his social media account, he has not noticed any of the aforementioned people ever post any information regarding the incident.

- [REDACTED], [REDACTED], [REDACTED] and PO. Grant are all just friends. None of the aforementioned ever discuss their outings or social gatherings with PO. Kingston. PO. Kingston stated to IAB Investigators that none of the aforementioned ever discussed any incidents pertaining to April 21, 2018 and April 22, 2018. PO. Kingston stated that he does not even know what the incident is about regarding the Sexual Misconduct, nor did PO. Kingston know it was indeed a PG. Hearing discussing a Sexual Misconduct / DWI allegation (PO. Kingston still does not know what the incident pertains to).

>PO. Steven Grant, tax #962446, Subject

-PO. Steven Grant was appointed to the New York City Police Department on October 11, 2017. PO. Grant has been previously assigned to Transit Bureau ATU for approximately one month prior to the incident and currently to the Bronx Criminal Court Section as a midnight administrative officer for the last four (4) months.

-PO. Steven Grant was RDO on Friday, April 20, 2018 and Saturday, April 21, 2018. PO. Grant's last tour of duty was Thursday, April 19, 2018 on the first platoon and his first tour back was Sunday, April 22, 2018 on the first platoon.

-PO. Grant had known [REDACTED] and [REDACTED] from his prior employment in the [REDACTED] PO. Grant has known [REDACTED] over five (5) years and met at the [REDACTED] when PO. Grant and [REDACTED] worked the baggage and checkpoint departments together. PO. Grant has never known [REDACTED] prior to his employment at [REDACTED] PO. Grant hangs out with [REDACTED] in a group setting and the social gathers are not on a steady or regular basis. PO. Grant describes his relationship with [REDACTED] as a friends only relationship, which includes [REDACTED]

-On an unknown date, [REDACTED], [REDACTED], and [REDACTED] reached out to PO. Grant and invited him to the [REDACTED] which was set for Friday, April 20, 2018. PO. Grant traveled to the Crystal Lounge in his 2004 gray Volkswagen Jetta and arrived at approximately 2230 hours, where he met with [REDACTED], [REDACTED], and [REDACTED]

- [REDACTED] is a Hookah bar, which contained music, dancing, and there was a lot of people that night. The aforementioned people were there at 2230 hours and they all departed the [REDACTED] at approximately 0400 hours.

-While at the [REDACTED] or thereafter, PO. Grant was not armed. PO. Grant had safely stored his firearms inside of his safe.

-While at the [REDACTED] and thorough out the night until closing, [REDACTED] was heavily intoxicated. Although PO. Grant does not know the amount of drinks [REDACTED] consumed, PO. Grant observed [REDACTED] not only drink from their table, but was also drinking alcohol from a complete stranger's table, which was next to theirs. PO. Grant stated that "the big brother kicked in" and he was wandering who that guy was that was giving [REDACTED] drinks. PO. Grant told the girls to go and bring [REDACTED] back to their table because she is drinking from a complete stranger. The [REDACTED] sisters had to pull her away from the guy because she was dancing all over him and the stranger was giving her an unknown drink.

- [REDACTED]'s demeanor was normal, but she was intoxicated. PO. Grant asked her if she is ok and she could hardly stand up toward the end of the night. They would have to hold her and help her stand up due to the intoxication. During [REDACTED]'s intoxication, she would dance all over the place and dance over random people. PO. Grant and [REDACTED] did not engage in any flirtatious behavior or sexual behavior with each other while at the [REDACTED]

-PO. Grant purchased a bottle of Patron tequila, for \$150 Dollars, from the [REDACTED] in order to satisfy the establishment's requirement for VIP table seating at the location. While at their table, from left to right, [REDACTED] PO. Grant, [REDACTED] and [REDACTED] were mostly seated in this arrangement. [REDACTED] was not always seated at their table, but was in eye's view thorough out the night. The girls drank from the Patron bottle, while PO. Grant only had two (2) drinks while at the [REDACTED] At approximately 1150 hours, PO. Grant was drinking a Ciroc vodka /orange beverage and his last drink at 0030 hours, was a Heineken beer. PO. Grant was not drinking as much that night because he was not feeling well. The aforementioned party departed the [REDACTED] at approximately 0400-0430 hours.

-After departing the [REDACTED] PO. Grant was walking to his vehicle in the company of all three (3) girls. PO. Grant was seated in the driver seat, [REDACTED] was seated in the front passenger seat, [REDACTED] was seated behind PO. Grant, and [REDACTED] was seated behind [REDACTED] All parties present in the vehicle with PO. Grant were their voluntarily and by their own accord. It is normal for PO. Grant to give the aforementioned people a ride home. PO. Grant did not want to leave them at the [REDACTED] due to their current state of intoxication.

-While in the vehicle, [REDACTED] and [REDACTED] were arguing with each other regarding an unknown matter in a loud tone of voice. At this point, [REDACTED] and [REDACTED] was intoxicated, while [REDACTED] was mostly coherent.

-At the request of the girls, PO. Grant pulled into a White Castle drive-thru, which was located approximately 10-15 minutes from [REDACTED]'s apartment.

-After leaving the White Castle, PO. Grant arrives at [REDACTED]'s apartment building. PO. Grant opened the car door for [REDACTED]. PO. Grant observed that [REDACTED] was slump over and he called for her to wake up. [REDACTED] responded by sticking her hand out the door and when PO. Grant attempted to assist her, PO. Grant caught her before she stumbled to the floor. [REDACTED] was not able to stand or hold her weight without PO. Grant's assistance. The [REDACTED] sisters remained in the vehicle, while PO. Grant assisted [REDACTED] to her apartment.

-PO. Grant attempted to use [REDACTED]'s keys in order to gain entry into the apartment. [REDACTED] was so intoxicated, she did not know which of the keys opened the main door of the building. The security officer eventually opened the main door and PO. Grant proceeded to escort [REDACTED] into the elevator and to her apartment. Using [REDACTED]'s key, PO. Grant gains access to [REDACTED]'s apartment. Upon entering the apartment, [REDACTED] asks PO. Grant for her burgers. PO. Grant sits [REDACTED] in a seat by the island in her kitchen (a table with stools). Once seated at the table, PO. Grant places the burgers in front of her, uses the bathroom, and asks [REDACTED] if she is alright prior to leaving. [REDACTED] asks PO. Grant for her stuff, so PO. Grant takes the keys from [REDACTED] and goes to his car.

-Once at his car, PO. Grant asks [REDACTED] for [REDACTED]'s belongings. [REDACTED] told PO. Grant that [REDACTED] is highly intoxicated and needs to get her home before she throws up. At this point, PO. Grant gets into his car and drive the [REDACTED] sisters to their residence, which is approximately four (4) blocks away from [REDACTED]'s apartment. Once at the location, PO. Grant assists [REDACTED] in getting [REDACTED] out of his car. Once [REDACTED] was out of his car, [REDACTED] helps her sister into the building at which point, PO. Grant gets into his vehicle and returns to [REDACTED]'s apartment.

-Once PO. Grant arrived at [REDACTED]'s apartment building, the security officer let PO. Grant into the building, where he proceeded to [REDACTED]'s apartment. The return to [REDACTED]'s apartment was necessary because he had to return the keys to [REDACTED]. Using [REDACTED]'s keys, PO. Grant gains entry into [REDACTED]'s apartment. Once he entered the apartment, PO. Grant did not observe anyone else inside the apartment other than [REDACTED] still sitting at the table. [REDACTED] was slumped over on her side and still holding the burger, while still sitting in the chair. PO. Grant also noticed that [REDACTED]'s eyes were rolled back. PO. Grant told [REDACTED] "to wake up.. get yourself together" and tried to help her because PO. Grant did not want her kids to find her that way in the morning.

-First, PO. Grant places the apartment keys on the table. Then, PO. Grant was tapping her and telling her to wake up. [REDACTED] told PO. Grant to help her. PO. Grant noticed that she had food in her hand, so he removed his jacket and placed it over a chair that was located immediately inside the bedroom. PO. Grant then cleaned [REDACTED]'s hand and PO. Grant told [REDACTED] to "get herself together and don't let your kids see you this way." [REDACTED] told PO. Grant that she wanted to lay down and PO. Grant told her that she needs to walk to her room. At this point, [REDACTED] extends her hand and PO. Grant assists her while she holds on to the wall. [REDACTED] at this point, walked and stumbled into the bed. PO. Grant asks [REDACTED] if she needs a bucket in which [REDACTED] replied "no" and at that point, PO. Grant left [REDACTED]'s apartment.

-At no point did PO. Grant lay on [REDACTED]'s bed, nor did he "spoon" with her on the bed or anywhere in the apartment. PO. Grant never asked [REDACTED] about her nightgown, nor did he try to change her clothes. PO. Grant never placed his hands down [REDACTED]'s pants and rub her genital area ("finger her"). PO. Grant did not fingered [REDACTED] in her bed, anywhere inside her apartment, inside of his vehicle, the [REDACTED] or anywhere else. [REDACTED] never cried for PO. Grant to stop and never told him "stop....no...you know I have a boyfriend" or say "I love [REDACTED]". PO. Grant and [REDACTED] have never been sexually / physically involved with each other at any point, whether consensual or not. Aside from the jacket removed, PO. Grant has not taken off any garments of clothing while inside of [REDACTED]'s apartment. At no point did [REDACTED] ask PO. Grant to leave her apartment. PO. Grant stated that helping [REDACTED] inside of her apartment was not out of the ordinary. PO. Grant has been inside of [REDACTED]'s apartment in the past. PO. Grant was invited there a few times for social gatherings, such as playing games, playing cards, or her children's birthday parties. The duration of time that PO. Grant was inside of the apartment was for approximately 10 minutes.

-While in his vehicle, PO. Grant realizes that he does not have his cellphone. PO. Grant then remembers that it is inside of the jacket he forgot inside of [REDACTED]'s apartment. PO. Grant was granted entry into the building by the security officer and then proceeded toward [REDACTED]'s apartment. PO. Grant began knocking on the apartment door and after approximately five (5) minutes, [REDACTED], the daughter of [REDACTED] answers the front door and PO. Grant asks her for his jacket. [REDACTED] closes the door and about a minute later, she emerges with his jacket. PO. Grant tells [REDACTED] to make sure that she locks the door behind her. The entire visit was approximately eight (8) minutes. PO. Grant has never been back to the apartment ever since.

-Upon leaving [REDACTED]'s apartment, PO. Grant got inside of his vehicle and proceeded to drive home. Before heading home, PO. Grant drove by LaGuardia Airport, where he pulls into an adjacent employee parking lot and takes a nap for approximately an hour and half due to his fatigue. PO. Grant has not consumed any alcoholic beverages since his departure from [REDACTED].

-Upon leaving the parking area and sometime later, PO. Grant's gray Volkswagen Jetta was involved in a 10-53 at the intersection of [REDACTED]. PO. Grant was traveling on [REDACTED] toward the intersection of [REDACTED], which contains a traffic light. PO. Grant was stopped at the light and the car behind him "blew" and by the angle of the sun, the light appeared to be green, so PO. Grant proceeds into the intersection where he collided with another vehicle. PO. Grant does not recall the make and model of the other vehicle, but he states that the other motorist was an Asian male in his 50's who had a female Asian passenger. PO. Grant approached the older Asian couple and asked them if they were ok. Members of the 75th Precinct responded to the 10-53 at the location. The officers interviewed him and the other motorist. The officer asked him to move the car out of the way and PO. Grant complied. According to PO. Grant, there was nothing out of the ordinary to note about the accident. PO. Grant was not intoxicated, nor did he have any alcoholic beverages inside of the vehicle. There were no injuries at the location. PO. Grant remained at the scene until the officers completed the investigation. Once the investigation was complete, PO. Grant proceeded home with his vehicle.

(PO. Grant was shown Attachment A1-A5. PO. Grant examined the text messages that were written between [REDACTED] and himself)

-PO. Grant stated that [REDACTED] had sent him text messages accusing him of putting his hands down her pants and rubbing / fingering her genital area. Upon reading the texts, PO. Grant was confused and texted her "what are you talking about?" PO. Grant has not communicated with [REDACTED] or visited her since the accusations.

-PO. Grant was surprised and confused at the accusations that [REDACTED] texted him regarding the raping and the fingering of her person.

(PO. Grant was asked to reexamine Attachment A-3. The attachment showed a picture of the damages sustained by PO. Grant's vehicle during his 10-53. The picture was followed by a caption that read "Last night is really a blur")

-Upon examining Attachment A-3, PO. Grant stated that when he text [REDACTED] the photo and the caption, he was feeling the effects of the vehicle accident and can only describe it as a "blur". PO. Grant texted the picture not only to [REDACTED] but to the other girls that were present, which was just merely informational.

-The reason PO. Grant did not notify the Internal Affairs Bureau, Operations, or a Supervisory member of the NYPD about the allegations made by [REDACTED] in the text messages was because he did not think that the threats were serious and thought it was a joke. PO. Grant reached out to [REDACTED] and asked her if [REDACTED] was actually serious about those text messages. [REDACTED] told PO. Grant not to worry about it and that she was going to talk to her. PO. Grant did not know if it was a joke or not and [REDACTED] did not think she was serious as well, so PO. Grant let it go. [REDACTED] never followed up with PO. Grant since then. PO. Grant also stated that he didn't know that he had to notify anyone.

-After review of the text messages, PO. Grant maintains that he did not finger or rub [REDACTED]'s genital area.

(Attachment B, known as PG Procedure 207-21 "Allegations of Corruption and Other Misconduct Against Members of the Service" was read into the record. PO. Grant was also shown the PG. Procedure and given time to read over it. The procedure was brought to the attention of PO. Grant)

Supervisor Deficiencies:
N/A

Conclusion:

Information obtained via interviews of the complainant, witnesses, and the subject officer provided insufficient evidence to support the allegation that PO. Grant in this case committed the allegation of Criminal Sexual Act, while in the apartment of [REDACTED]

[REDACTED] As per interviews of the witnesses and of the subject officer, PO. Grant met with [REDACTED] and [REDACTED] at the [REDACTED] on Friday, April 20, 2018, at approximately 1030 hours. PO. Grant purchased a bottle of Patron so he can obtain VIP seating at the [REDACTED] PO. Grant only consumed two (2) alcoholic beverages throughout his stay at the [REDACTED] because he was not feeling well. [REDACTED] and [REDACTED] consumed the contents of the Patron Bottle. [REDACTED] was so intoxicated, that she was dancing with random strangers and even drank alcohol from a stranger's table. The [REDACTED] sisters had to remove [REDACTED] from the stranger's table at one point during the night. None of the aforementioned people stated that PO. Grant was armed with a firearm or that he displayed one at any point during the night.

Video from [REDACTED]'s residential building revealed that PO. Grant escorted [REDACTED] into her apartment due to her intoxication. PO. Grant did leave the residence and drove the [REDACTED] sisters to their home, because [REDACTED] was going to vomit inside of PO. Grant's vehicle. PO. Grant returned to [REDACTED]'s apartment in order to return her keys. Interviews conducted with [REDACTED] and PO. Grant depict different version of events. [REDACTED] stated that PO. Grant inquired as to the whereabouts of her nightgown, spooned with her in her bed, and then PO. Grant placed his hand inside of [REDACTED]'s pants, and fingered her vagina. The complainant further stated that when she began to cry and told PO. Grant to stop, he got up like a robot and left the apartment without incident. PO. Grant stated that upon entering the apartment, [REDACTED] was seated at the kitchen table still holding a hamburger from White Castle in her hand. PO. Grant saw that [REDACTED] was slumped over on her side and decided to help her walk to her bedroom, so her children would not find her that way in the morning. PO. Grant helped [REDACTED] walk to the bedroom, where unprompted by him, she immediately fell unto her bed. PO. Grant asked [REDACTED] if she needed a bucket, which she replied no. The third and final trip to [REDACTED]'s apartment was PO. Grant retrieving his jacket from her apartment. Interview of [REDACTED] who is [REDACTED]'s daughter, revealed that she heard someone who turned out to be PO. Grant knocking on the door. [REDACTED] retrieved PO. Grant's jacket, at which point, she passed it through the door. At no point did PO. Grant re-enter the apartment when he came to retrieve his jacket. This was the final visit to the apartment by PO. Grant.

Interviews conducted with PO. Costigan, PO. McClarnon, EMS worker [REDACTED], EMS worker [REDACTED] and [REDACTED] revealed that PO. Grant and [REDACTED] were involved in a 10-53 at [REDACTED] which is in the confines of the 75th Precinct. It was stated by the aforementioned, that PO. Grant was not intoxicated and did not exhibit symptoms of alcohol consumption, nor did he display a firearm, shield, or identification card to anyone on the scene. None of the parties present or involved claimed any injuries at the scene, nor was there any need for a DARP tow at the location. The officers and EMS workers on the scene did not notice anything out of the ordinary and described the vehicle accident to be merely routine. The only statement made by PO. Grant at the scene was listed on the PAR by the reporting officer, which gave his side of the story pertaining to the accident. PO. Grant stated that the glare from the sun made the traffic signal appear to be green. PO. Costigan and PO. McClarnon stated that if they did hypothetically observed a UMOS DWI / DWAI, they would have notified a Duty Captain or the Internal Affairs Bureau.

PO. Grant stated that [REDACTED] had sent him text messages accusing him of putting his hands down her pants and rubbing / fingering her genital area. Upon reading the texts, PO. Grant was confused and texted her "what are you talking about?" PO. Grant has not communicated with [REDACTED] or visited her since the accusations. The reason PO. Grant did not notify the

Internal Affairs Bureau, Operations, or a Supervisory member of the NYPD about the allegations made by [REDACTED] in the text messages was because he did not think that the threats were serious and thought it was a joke. PO. Grant reached out to [REDACTED] and asked her if [REDACTED] was actually serious about those text messages. [REDACTED] told PO. Grant not to worry about it and that she was going to talk to her. PO. Grant did not know if it was a joke or not and [REDACTED] did not think she was serious as well, so PO. Grant let it go. [REDACTED] never followed up with PO. Grant since then. PO. Grant also stated that he didn't know that he had to notify anyone and as a result received Charges and Specifications for "Failing to Notify IAB", which was recorded under IAB Log #18-43505.

Based on the nature of the allegations made by [REDACTED] PO. Steven Grant was placed on modified assignment by Deputy Inspector Thomas McGrath under the authority of Deputy Commissioner Reznick for the Good Order and Efficiency of the Department in the furtherance of log number #18-15425 (Additional Prior Log).

Based on the interviews, the review of video, and the review of text messages obtained through the course of this investigation, there is insufficient evidence to prove or disprove that the allegation of Criminal Sexual Act occurred between PO. Grant and [REDACTED]. The Lab report provided by the Police Lab did not have enough DNA profile for comparison. The interviews of [REDACTED] and PO. Grant depicted different version of events. The Bronx District Attorney closed their case based on the lack of evidence obtained through the course of the investigation. The text message exchange between [REDACTED] and PO. Grant show the subject officer denied the allegations made against him. Furthermore, interviews conducted in this investigation attested to PO. Grant not possessing a firearm or displaying a firearm throughout the night. At the scene of the accident, six (6) eye witnesses stated that PO Grant was not intoxicated, nor did he display any symptoms of alcohol consumption. The allegation of "□Crime - (Not Domestic) - Sex Crime - Criminal Sexual Act" will be disposed as UNSUBSTANTIATED. The allegation of "□Crime - (Not Domestic) - DWI/DWI" will be disposed as UNFOUNDED. The allegation of "□Unfit for Duty - Off Duty - Un-Armed" will be disposed as UNFOUNDED. The allegation of "Fail to Notify - IAB" was addressed in Specification #1 of the Charges and Specifications and will be closed as SUBSTANTIATED. The allegation of "□Additional Information Prior Log" will be disposed as INFORMATION AND INTELLIGENCE. The allegation of "□Modified MOS - □Other - IAB" will be disposed as INFORMATION AND INTELLIGENCE. The allegation of "Charges and Specifications - IAB" will be closed as INFORMATION AND INTELLIGENCE. Based on the results of this investigation, the investigating officer recommends that this case be closed with an overall disposition of PARTIALLY SUBSTANTIATED.

Police Officer Steven Grant, tax #962446, Bronx Court Section

* Crime (Not Domestic) □ Sex Crime □ Criminal Sexual Act: UNSUBSTANTIATED

* Crime (Not Domestic) □ DWI/DWI: UNFOUNDED

* Unfit for Duty □ Off Duty □ Un-Armed: UNFOUNDED

* Fail to Notify □ IAB: SUBSTANTIATED

* Modified MOS □ Other □ IAB: INFORMATION AND INTELLIGENCE

* Additional Information Prior Log: INFORMATION AND INTELLIGENCE

* Charges and Specifications - IAB: INFORMATION AND INTELLIGENCE

Attachments to the Closing Report Worksheet:

*Notification and Disposition Letter: PO. Steven Grant

*Letter to Complainant: [REDACTED]

*Charges and Specifications: PO. Steven Grant

*Request for Charges and Specifications against PO. Steven Grant

*Preferred Charges and Specifications against PO. Steven Grant

Subjects Involved

Name	Status	Sex	Race	Dob
962446 STEVEN GRANT POM (862-TRANSIT BUREAU DISTRICT 3)	UNIFORM MEMBER OF SERVICE	MALE	BLACK	[REDACTED]

Allegations

1	Full Allegation	Classification	Allegation Index	Allegation Date	Finding	Finding Date
	Crime (Not Domestic) - Sex Crime - Criminal Sexual Act	Crime	SEX-Sex Crime	04/22/2018	12 - Unsubstantiated	09/18/2018

Comments

This investigation disclosed that on Saturday, April 21, 2018, PO. Grant escorted [REDACTED] to her apartment due to her intoxication after a group outing at the [REDACTED]. Based on the interviews, the review of video, and the review of text messages obtained through the course of this investigation, there is insufficient evidence to prove or disprove that the allegation of Criminal Sexual Act occurred between PO. Grant and [REDACTED]. The Lab report provided by the Police Lab did not have enough DNA profile for comparison. The interviews of [REDACTED] and PO. Grant depicted different version of events. The Bronx District Attorney closed their case based on the lack of evidence obtained through the course of the investigation. The text message exchange between [REDACTED] and PO. Grant showed the subject

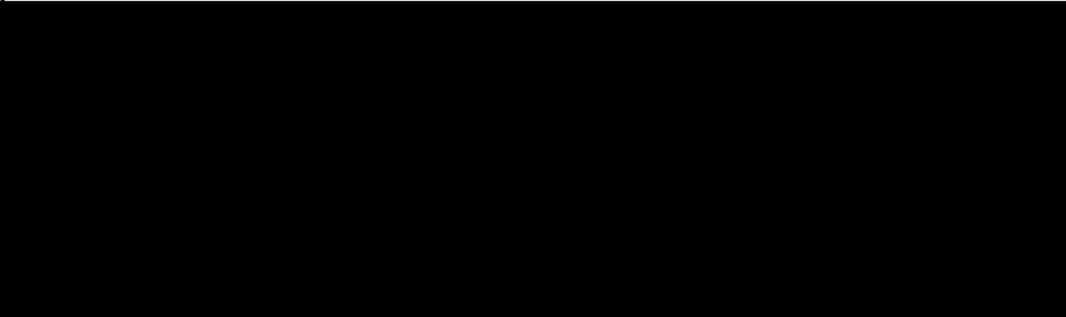
		officer denied the allegations made against him and [REDACTED]'s messages affirmed the allegation in this case. As such, the allegation of "Crime (Not Domestic) - Sex Crime - Criminal Sexual Act" will be closed as UNSUBSTANTIATED.				
2	Full Allegation Fail to Notify - IAB	Classification Abuse of Dept Regulations	Allegation Index Fail to Make Notification	Allegation Date 04/22/2018	Finding 07 - Substantiated	Finding Date 09/18/2018
		Comments This investigation disclosed that on Saturday, April 21, 2018, PO. Grant received a series of text messages from [REDACTED] accusing him of the allegation of Criminal Sexual Act. Based on the interviews and the review of the text messages, this investigation proved that PO. Grant did not notify IAB regarding the allegation made against him by [REDACTED]. During the PG. Hearing, PO. Grant stated that [REDACTED] had sent him text messages accusing him of putting his hands down her pants and rubbing / fingering her genital area. Upon reading the texts, PO. Grant was confused and texted her "what are you talking about?" PO. Grant has not communicated with [REDACTED] or visited her since the accusations. The reason PO. Grant did not notify the Internal Affairs Bureau, Operations, or a Supervisory member of the NYPD about the allegations made by [REDACTED] in the text messages was because he did not think that the threats were serious and thought it was a joke. PO. Grant did not know if it was a joke or not and [REDACTED] did not think she was serious as well, so PO. Grant let it go. [REDACTED] never followed up with PO. Grant since then. PO. Grant also stated that he didn't know that he had to notify anyone. As such the allegation of "Fail to Notify - IAB" was addressed in Specification #1 of the Charges and Specifications and will be closed as SUBSTANTIATED.				
3	Full Allegation Additional Information Prior Log -	Classification NOTIFICATION/Additional Information	Allegation Index ADD-Additional Information	Allegation Date 04/22/2018	Finding 04 - Info. and Intelligence	Finding Date 09/18/2018
		Comments Based on the nature of the allegations made by [REDACTED] PO. Steven Grant was placed on modified assignment by Deputy Inspector Thomas McGrath under the authority of Deputy Commissioner Reznick for the Good Order and Efficiency of the Department in the furtherance of log number #18-15425. As such, the allegation of "Additional Information Prior Log" will be closed as INFORMATION AND INTELLIGENCE.				
4	Full Allegation Modified MOS - Other - IAB	Classification NOTIFICATION/Additional Information	Allegation Index ADD-Additional Information	Allegation Date 04/22/2018	Finding 04 - Info. and Intelligence	Finding Date 09/18/2018
		Comments Based on the nature of the allegations made by [REDACTED] PO. Steven Grant was placed on modified assignment by Deputy Inspector Thomas McGrath under the authority of Deputy Commissioner Reznick for the Good Order and Efficiency of the Department in the furtherance of log number #18-15425. As such, the allegation of "Modified MOS - Other - IAB" will be closed as INFORMATION AND INTELLIGENCE.				
5	Full Allegation Unfit For Duty - Off Duty - Un-Armed	Classification Abuse of Dept Regulations	Allegation Index UFD-Unfit for Duty/Other	Allegation Date 05/22/2018	Finding 10 - Unfounded	Finding Date 09/18/2018
		Comments This investigation disclosed that on Friday, April 20, 2018 and Saturday, April 21, 2018, PO. Grant, [REDACTED], [REDACTED], and [REDACTED] met at the [REDACTED] in a group setting. Based on the interviews, PO. Grant purchased a bottle of Patron, so he can obtain VIP seating at the [REDACTED]. PO. Grant only consumed two (2) alcoholic beverages throughout his stay at the [REDACTED] because he was not feeling well. [REDACTED], [REDACTED], and [REDACTED] consumed the contents of the Patron Bottle. [REDACTED] was so intoxicated, that she was dancing with random strangers and even drank alcohol from a stranger's table. The [REDACTED] sisters had to remove [REDACTED] from the stranger's table at one point during the night. None of the aforementioned people stated that PO. Grant was armed with a firearm or that he displayed one at any point during the night. At the scene of the accident, six (6) eye witnesses stated that PO Grant was not intoxicated, nor did he display any sort of firearm or police paraphernalia at the scene. As such, the allegation of "Unfit for Duty - Off Duty - Un-Armed" will be closed as UNFOUNDED.				
6	Full Allegation Crime (Not Domestic) - DWI/DWAI	Classification Traffic	Allegation Index DWI-Driving While Intox	Allegation Date 05/22/2018	Finding 10 - Unfounded	Finding Date 09/18/2018

		Comments This investigation disclosed that on Friday, April 20, 2018 and Saturday, April 21, 2018, PO. Grant, [REDACTED], [REDACTED], and [REDACTED] met at the [REDACTED] in a group setting. Based on the interviews, PO. Grant purchased a bottle of Patron, so he can obtain VIP seating at the [REDACTED]. PO. Grant only consumed two (2) alcoholic beverages throughout his stay at the Crystal Lounge because he was not feeling well. [REDACTED] and [REDACTED] consumed the contents of the Patron Bottle. [REDACTED] was so intoxicated, that she was dancing with random strangers and even drank alcohol from a stranger's table. The [REDACTED] sisters had to remove [REDACTED] from the stranger's table at one point during the night. None of the aforementioned people stated that PO. Grant was armed with a firearm or that he displayed one at any point during the night. At the scene of the accident, six (6) eye witnesses stated that PO Grant was not intoxicated, did not display symptoms of intoxication, nor did he display any sort of firearm or police paraphernalia at the scene. As such, the allegation of "Crime (Not Domestic) - DWI/DWAI" will be closed as UNFOUNDED.				
7	Full Allegation Charges & Specifications - IAB	Classification NOTIFICATION/Additional Information	Allegation Index CS-Charges and Specifications	Allegation Date 11/05/2018	Finding 04 - Info. and Intelligence	Finding Date 11/05/2018
		Comments This investigation disclosed that on November 05, 2018, Deputy Inspector William J. Gardner, Commanding Officer of IAB Group #10, preferred Charges and Specifications against PO. Steven Grant on 11/05/18, which was recorded under IAB Log #18-43505. The allegation of Charges and Specifications - IAB will be closed as INFORMATION AND INTELLIGENCE.				

ATTACHMENT

1	 ' <u>CHARGES AND SPECIFICATIONS - PO. STEVEN GRANT</u> '
2	 ' <u>LETTER TO COMPLAINANT - [REDACTED]</u> '
3	 ' <u>PO. GRANT - NOTIFICATION OF DISPOSITION - INTERNAL INVESTIGATION</u> '
4	 ' <u>PREFERRED CHARGES AND SPECIFICATIONS AGAINST PO. STEVEN GRANT</u> '
5	 ' <u>REQUEST FOR CHARGES AND SPECIFICATIONS - PO. GRANT</u> '

Reporting Officer:	Rank SGT	Name CARDONA EDWIN	Tax Reg. No. 932416	Command G10-GROUP 10		
Reviewing Supervisor:	Manner of Closing C - PARTIALLY SUBSTANTIATED	Date Reviewed 11/21/2018	Date of Next Review	Name SHEA THOMAS	Supv. Tax No. 899848	
Endorser:	Rank LT	Name IRIZARRY SAMUEL	Tax Reg. No. 932812	Command G10-GROUP 10	DateTime Reviewed 11/08/2018 17:41	Status Approved
	Comments I HAVE REVIEWED THIS CASE AND CONCUR WITH THE INVESTIGATING OFFICERS FINDINGS.					
Endorser:	Rank INS	Name	Tax Reg. No. 890060	Command	DateTime Reviewed	Status Approved

		GARDNER WILLIAM		G10-GROUP 10	11/08/2018 17:58	
	Comments APPROVED					
Endorser:	Rank DI	Name VIERLING LOUIS	Tax Reg. No. 919823	Command Z01-ZONE 1	DateTime Reviewed 11/13/2018 19:47	Status Rejected
	Comments 					
Endorser:	Rank SGT	Name CARDONA EDWIN	Tax Reg. No. 932416	Command G10-GROUP 10	DateTime Reviewed 11/14/2018 15:59	Status Approved
	Comments 					
Endorser:	Rank DI	Name VIERLING LOUIS	Tax Reg. No. 919823	Command Z01-ZONE 1	DateTime Reviewed 11/14/2018 16:05	Status Approved
	Comments 					
Endorser:	Rank INS	Name SHEA THOMAS	Tax Reg. No. 899848	Command Z01-ZONE 1	DateTime Reviewed 11/21/2018 08:49	Status Approved
	Comments APPROVE CLOSING.					